

1.2. Notification by means of electronic communication

Under R. 127 EPC, notification may also be effected by means of electronic communication as determined by the President of the EPO and under the conditions laid down by him. However, for this to happen, users must have agreed to receive communications by such means.

R. 127(2) EPC extends to electronic notification the safeguards that already applied to paper. It defines the date on which an electronic document is deemed to be delivered as the tenth day after its transmission. In case of dispute, the Office must prove that the electronic document reached its destination, or the date on which it reached it. This provision is not limited to any specific technical solution or tool, such as the Mailbox service (see notice of the EPO dated 30 March 2015, OJ 2015, A36).

Facsimile ("fax") transmission of notifications is generally not admissible (J 27/97) and therefore does not constitute valid notification even if receipt is proven. The situation was different in T. 580/06 where notification of a shortfall under point 6.4 ADA was sent only by fax. However, this form of notification was in keeping with point 6.4 ADA in conjunction with R. 77(2)(d) EPC 1973. The President of the EPO had not laid down conditions for notifications by fax within the meaning of that rule; in particular, postal confirmation of the fax had not been made compulsory. Thus the notification had been made in an appropriate form. In the board's view, the "OK" on the fax transmission report was to be regarded as evidence of complete and error-free transmission, on which the fax became the recipient's responsibility.

The decision of the President of the EPO dated 11 March 2015 (effective as of 1 April 2015) is currently the legal basis for the EPO's Mailbox service (see notice of the EPO dated 30 March 2015, OJ 2015, A36). It defines the date of transmission, which triggers the ten-day period under R. 127(2) EPC, as the date indicated in the document ("the date of the document"), provided the addressee can access it in the Mailbox by that date. In other words, the ten-day period cannot be considered to have started before the date of the document. If the addressee disputes the date of transmission, it is up to the EPO to establish it. The ten-day period then starts on the date thus established (Art. 9 of the decision, OJ 2015, A28).

1.3. Notification by delivery by hand and delivery by public notice

Under R. 128 EPC notification may be effected on the premises of the EPO by delivery by hand of the document to the addressee, who must on delivery acknowledge its receipt. Notification is deemed to have been effected even if the addressee refuses to accept the document or to acknowledge receipt thereof.

If the address of the addressee cannot be established, or if notification in accordance with R. 126(1) EPC has proved to be impossible even after a second attempt, notification shall be effected by public notice (R. 129(1) EPC). In this case, the EPO informs the parties and the public of the date on which the document is deemed to have been delivered by

publishing a notice in the European Patent Bulletin. The document is deemed to have been delivered one month after publication of the notice.

2. Notification to representatives

If a representative has been appointed, notifications must be addressed to him in accordance with R. 130(1) EPC (previously R. 81(1) EPC 1973) from the time of his appointment. This only applies if a representative is actually appointed before a notification is posted since a notification has to be made on the basis of the facts on file at the time of posting (J 22/94). If several representatives have been appointed for a single party, notification to any one of them is sufficient (T 1281/01).

In J 17/98 the board stated that the filing of a general authorisation does not, without any additional information linking the authorisation to a specific case and/or to the appointment of a representative, imply the appointment of a professional representative (see also decision J 20/96).

In J 5/04 the board made it clear that the initial designation of a representative at the time when the international application had been filed with a receiving Office other than the EPO (here: INPI) did not meet the requirements for the valid designation of the representative for the regional phase before the EPO.

In T 812/04 the board pointed out that R. 101(6) EPC 1973 (R. 152(8) EPC), in conjunction with R. 81(1) EPC 1973, clearly indicated that, until the termination of an authorisation had been communicated to the EPO, the latter was obliged to notify communications, decisions or other documents to the duly appointed representative and that these notifications alone would have valid effects. The fact that the appellant had filed the notice of appeal himself imposed no obligation on the Registry of the boards of appeal to inquire about the legal status of relations between the applicant (client) and the duly appointed representative or to send the documents and communications subsequently directly to the client direct.

In J 19/92 the Legal Board of Appeal held that notifications to an applicant's representative were duly made if they were despatched before the representative relinquished his brief. The notification to the applicant did not therefore have to be repeated after the brief had been relinquished. On the contrary, it was the representative who was obliged to inform his client of the notification. In T 247/98 the board confirmed that what determined whether a R. 81(1) EPC 1973 (R. 130(1) EPC) notification was to be sent to the representative was the legal situation at the time when the document was despatched (see also T 1281/01).

However, in T 703/92 the written decision and minutes of the oral proceedings were sent not to the authorised representative but to the opponents. The board found that, as the provision relating to notification had not been observed, the question whether a notification had effectively taken place depended, in accordance with R. 82 EPC 1973 (R. 125(4) EPC), on whether and when the representative had received the full decision.

In T.172/04 the notification concerned had been received by an employee authorised to receive post on behalf of the representative. That the representative himself only had knowledge of the notification several days or weeks later was therefore irrelevant, as the only legal condition to consider, i.e. delivery to the addressee, was established. This finding was confirmed in T.743/05, in which the board observed that an addressee is a person to whom something is addressed and that the authorised employee of the representative's office's signature on the advice of delivery met this definition. A different interpretation (i.e. that it had to be brought to the attention of the professional representative himself), would lead to uncertainty for all the users of the European Patent system, as the answer to the question whether notification had effectively taken place could in that case depend entirely on the honesty, goodwill or organisational skills of the professional representative (similarly T.261/07).

In J.28/10 the representative's office was located in a large building in a business-park and incoming mail for the law firm was left at the doorman's desk. The doorman was the employee of a security company, this company having a contractual relation with the company that administrated the business-park where the representative rented office space. This lead the board to the conclusion that a letter which was delivered to a recipient, who was also identified as recipient for previous deliveries, should be deemed delivered by the postman to an authorised recipient, acting within the mail reception process implemented at the representative's office and accepted by him.

3. Notification to third parties

In T.261/07 the decision to revoke the patent was delivered (by registered letter with advice of delivery) to a person who was not an employee of the patentee (to whom the notification was addressed), but of a company that received letters on behalf of the patentee. No acknowledgement of receipt was on file for the patentee, who claimed never to have received the decision. Following T.172/04 and T.743/05, the board held that for reasons of legal certainty, delivery to the addressee is effected once a person authorised by the addressee has received the letter. In T.1535/10 too, the board held that, where the recipient did not operate his own mail office and instead made use of an external mail office, he had to accept that the external office would be treated as if it were his own in matters relating to the delivery of communications subject to deadlines. Any delay in forwarding such communications on the part of the external office would thus be attributed to the recipient's sphere of risk.

In J.35/97 a communication was handed to a third party not authorised by the appellant to accept it. The said party was in the addressee's business premises, but not an employee. In the board's view, that meant that notification under Section 12(1) and (2) RPCPS had not occurred. Nor did the party qualify under any of the categories of "substitute addressee". There was also no evidence that the appellant had ever seen the communication. The board therefore found the EPO had not shown notification to have been properly effected.

4. Spheres of risk and apportioning the burden of proof

Under R. 126(2) EPC, in the event of any dispute, it is incumbent on the European Patent Office to establish that a letter has reached its destination or to establish the date on which it was delivered to the addressee, as the case may be. In cases where the EPO is not able to prove the actual date of notification, a letter, for instance, sent by the addressee himself which indicates the date of receipt is accepted as proof. If it is evident from an addressee's reply that he has received the document, although he does not mention the date of its notification, the date on which that reply was written is to be regarded as the date of notification (Guidelines E-II, 2.6 – March 2022 version, regarding R. 125(4) EPC). The risk associated with electronic notification under R. 127 EPC is apportioned in the same way.

In T 1535/10 the board held that responsibility for obstacles to and delays in the receipt of decisions to be notified under R. 126(1) EPC had to be assigned according to spheres of risk. The Office was liable for both the risks arising in its own sphere and "transport risks". However, it distinguished such risks from those within the recipient's sphere of organisation and influence, e.g. the risk that employees or other authorised recipients failed to forward a letter delivered to the business address, or delayed in doing so. For a presumption that a letter had entered the recipient's sphere of organisation and influence, it sufficed that it had been delivered to his address and that he was in a position to take note of it, irrespective of whether he had actually taken (final) possession of it and noted its content (see also T 580/06).

In J 14/14, in keeping with the bulk of the boards' case law, the Legal Board held that it was clear from the wording of R. 126(2) EPC that, in the event of any dispute as to whether a notification had been received by the addressee, the onus was on the EPO to establish the fact and date of delivery. In the case in hand, the only proof of delivery that the EPO had in respect of the communication in question was a letter from Deutsche Post, referring to a registered letter sent to the appellant's representative and stating that it had been delivered to a person authorised to receive it. This was deemed insufficient to fulfil the requirements of R. 126(2) EPC since there was no proof that the appellant's representative or any other named individual had signed a document acknowledging receipt of the letter and no communication from the foreign postal service was disclosed (see also J 9/05 and J 18/05, where a similar confirmation letter by Deutsche Post was held not to be sufficient to prove the receipt of an EPO notification since the appellant had filed a considerable amount of counter-evidence and pointed out specific reasons why the letter might not have been received by the representative's office). See also T 691/16.

In T 529/09, however, the board held, distinguishing the case in hand from J 9/05 and J 18/05, that unlike in these cases, the appellant had not submitted any further arguments or evidence in order to demonstrate that the Deutsche Post's confirmation had failed to establish that the registered letter had reached its destination. The evidence on file therefore had to be regarded as sufficiently reliable and complete for proving the proper delivery of the letter (see also T 1304/07, T 1934/16).

In T 247/98 the board stated that when establishing the meaning of the term "im Zweifel" in the German version of R. 126(2) EPC, account should be taken of the French and

English versions, which assume that there is a dispute ('en cas de contestation', 'in the event of any dispute'). A dispute ('Zweifel', literally 'doubt' in the German version) within the meaning of this rule could only arise if it was maintained that a letter had in fact been received more than ten days following its posting. The mere absence of the advice of delivery or the receipt from the file was not in itself sufficient to give rise to a dispute ('Zweifel') within the meaning of this rule. In T.2054/15 the board stated that the burden of proof on the EPO could not be taken to mean that the party was under no obligation to help clarify the circumstances within its own sphere of responsibility

As regards differences in the signature on the advice of delivery recording that notification is effected, the board in T.691/16 pointed out that notification did not necessarily have to be effected by means of delivery to the actual recipient, but could also be effected by means of delivery to people living in the building or with the necessary authorisation. That was generally what happened at companies. There was therefore no reasonable doubt that the intervener had received the notice of action as claimed.